

Jag Mohan Lal v. State of U.P.

Allahabad High Court · Division Bench · 9 September 2020 · Writ-C No. 12852 of 2020 · WRIT - C No. - 12852 of 2020
· **Writ dismissed as withdrawn; liberty to complain under Clause 6.5.**

HEADNOTE

Writ petition dismissed as withdrawn, with liberty to file a complaint under paragraph 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The Court did not decide the underlying electricity dispute.

FACTUAL SUMMARY

Jag Mohan Lal filed a writ petition in the Allahabad High Court against the State of U.P. and four others. On 2 September 2020 a Division Bench granted three days to serve notice on respondents 2 and 3 and listed the matter as a fresh case for 9 September 2020. On that date, after hearing counsel for the petitioner and for respondent no. 2, the petitioner sought withdrawal of the writ with liberty to file a complaint under paragraph 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

liberty to complain under clause 6.5 on withdrawal

HOLDING

The writ petition was dismissed as withdrawn, with liberty to the petitioner to file a complaint under paragraph 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. ¶ 2

PRINCIPLE TAGS

clause-6.5-statutory-remedy The petitioner withdrew the writ and was granted liberty to pursue a complaint under paragraph 6.5 of the Supply Code rather than pressing the High Court petition. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE AND OF ANY CLAUSE 6.5 COMPLAINT

The Court dismissed the writ as withdrawn and did not examine the underlying dispute. ¶ 2